

IN THE SUPREME COURT OF PAKISTAN
(Original Jurisdiction)

PRESENT:

Mr. Justice Umar Ata Bandial, CJ
Mr. Justice Ijaz ul Ahsan
Mr. Justice Munib Akhtar

CONSTITUTION PETITION NO.9 OF 2023

(Holding General Elections of National Assembly and
Provincial Assemblies on same date)

Sardar Kashif Khan

...Petitioner(s)

Versus

Federation of Pakistan, Law and
Justice Division through its Secy. to
the Law and Justice Division and
others

...Respondent(s)

For the Petitioner(s)	: Mr. Shah Khawar, ASC
For Federation	: Mr. Mansoor Usman Awan, AGP Ch. Aamir Rehman, Addl. AGP Malik Javed Iqbal Wains, Addl AGP
For Jamat-e-Islami	: Mian Aslam, V.P.
For PPPP	: Mr. Farooq H. Haek, Sr. ASC
For PML(N)	: Nemo
For PTI	: Mr. Salman Akram Raja, ASC Mr. Faisal Fareed Ch. ASC Mr. Ali Zafar, ASC Mr. Makhdoom Shah Mahmood Hussain Qureshi Mr. Fawad Ahmed Ch.
For ECP	: Mr. Sajeel Shehryar Sawati, ASC Mr. Omer Hamid Khan, Sec. ECP Mr. M. Arshad, DG ECP
For PML (Awami)	: Sh. Rasheed Ahmed
For MQM (P)	: Nemo
For BAP	: Nemo
Date of Hearing	: 27.04.2023.

* * * * *

ORDER

Today the learned Attorney General for Pakistan has apprised the Court about the communication between the Government coalition and the Opposition during the Eid holidays regarding the matter of general elections. He has further added that initial steps have been taken for the nomination of the members of the negotiating team from both sides and matters relating to their meeting. On Court's query as to why the Chairman Senate has been involved, Mr. Farooq H. Naek, Sr. ASC, learned counsel for Pakistan Peoples Party Parliamentarians, has submitted that the venue of the Senate was chosen for the reason that it is the House of Parliament where the Provinces have equal representation and all political parties are present therein. The role of the Chairman Senate will only be of a facilitator without substantive involvement.

2. Mr. Shah Mahmood Qureshi, member Pakistan Tehreek-i-Insaf ("**PTI**"), has informed that Chairman PTI has nominated him, Senator Ali Zafar and Mr. Fawad Chaudhary as the members of their team. The learned Attorney General and Mr. Farooq H. Naek, Sr. ASC have assured the Court that the Government wants to commence negotiations as soon as possible and are willing to sit together with the PTI team either today or by tomorrow. The learned Attorney General has also stated that the Government coalition will finalise the names of their nominated members by today.

3. The Court appreciates the efforts of all parties to try to end the current political impasse and in particular their voluntary agreement to enter into negotiations to choose a single

date for holding General Elections to the National Assembly and the four Provincial Assemblies. It was made clear by the Court that the talks and negotiations between the two sides were entirely to be their own effort, without any direction or order of the Court in this regard in any manner. It was also made clear that the order of 04.04.2023 in Const. P.5 of 2023 remained unchanged.

4. Adjourned to a date to be fixed later.

Islamabad
27.04.2023